

Software as a Service Agreement

This Agreement is made on 30 April 2024 between Riverty GmbH, Rheinstraße 99, 76532 Baden-Baden, Germany (hereinafter "Riverty") and Orbital Analytics OÜ, Narva mnt 5, 10117 Tallinn, Estonia (hereinafter "Provider"), together the "Parties".

1. Scope of Services

Riverty shall provide the services described in Annex 1 (the "Services") to Provider in accordance with this Agreement and the service levels agreed therein. Provider shall provide all information reasonably required for the performance of the Services.

2. Term and Termination

The Agreement commences on the Effective Date for a fixed term of three (3) years. Thereafter either Party may terminate it at any time on six (6) months' notice to the end of a calendar quarter. Termination for good cause without notice remains reserved.

3. Fees and Payment

In consideration of the Services, Provider pays the remuneration listed in the price schedule. Payment is due fourteen (14) days after invoice date. All amounts are exclusive of value added tax.

4. Limitation of Liability

Except in cases of intent or gross negligence, the aggregate liability of either Party under this Agreement shall be limited to the fees paid in the twelve (12) months preceding the event giving rise to the claim. Neither Party shall be liable for indirect or consequential damages, including loss of profit.

5. Confidentiality

Each Party shall keep confidential all information obtained from the other Party in connection with this Agreement and shall use it solely for the purposes of this Agreement. This obligation survives termination for a period of five (5) years.

6. Data Protection

The Parties shall comply with applicable data protection law, in particular Regulation (EU) 2016/679 and the German Federal Data Protection Act (BDSG). Personal data shall be processed only for the purposes of this Agreement and deleted when no longer required.

7. Governing Law

This Agreement shall be governed by the laws of the Federal Republic of Germany, excluding the UN Convention on Contracts for the International Sale of Goods (CISG).

8. Dispute Resolution

The courts of Baden-Baden shall have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement.

9. Force Majeure

Neither Party shall be liable for any failure to perform its obligations where such failure results from events beyond its reasonable control, including natural disasters, war, pandemics or governmental action, provided that the affected Party notifies the other without undue delay.

10. Assignment

Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, which shall not be unreasonably withheld.

11. Anti-Corruption and Compliance

Each Party shall comply with all applicable anti-corruption and anti-bribery laws, including Sections 299 and 331 et seq. of the German Criminal Code (StGB) and the UK Bribery Act 2010, and shall maintain adequate procedures to prevent bribery by persons associated with it.

12. Notices

All notices under this Agreement shall be in writing and delivered by registered mail or e-mail to the addresses set out above. Notices are deemed received on the next business day.

For Riverty GmbH:

Managing Director

For Orbital Analytics OÜ:

Authorised Signatory